STATE OF ALABAMA
ETHICS COMMISSION

RSA UNION BUILDING
100 NORTH UNION STREET, SUITE 104
MONTGOMERY, ALABAMA 36104

MAILING ADDRESS
P. O. BOX 4840
MONTGOMERY, ALABAMA 36103-4840

PHONE: (334) 242-2997
FAX: (334) 242-0248

COMPLAINT

I. **Complainant's Name** (Person making complaint): FRANCIS PAUL RIPP
Address: 22985 HIGHRIDGE Rd
City/County/State/Zip: FAIRHOPE, AL 36532
Home Phone: 251-928-0445
Place of Employment: RIPP REPORT
Employer's Address: 22985 HIGHRIDGE Rd
City/County/State/Zip: FAIRHOPE AL 36532
Work Phone: 334-669-0497

NOTE: PLEASE LIST ONLY ONE (1) RESPONDENT PER COMPLAINT FORM. PLEASE USE A NEW FORM FOR EACH ADDITIONAL RESPONDENT.

II. **Respondent's Name and Title/Position Held** (Person against whom complaint is made): MR. ROBERT BROWN, FAIRHOPE CITY COUNCILMAN -- BOARD MEMBER EASTER SHORE ART CENTER
Address: C/O CITY OF FAIRHOPE
City/County/State/Zip: FAIRHOPE, AL
Home Phone: 251-454-7509
Place of Employment: PITTMAN / BROWN DEVELOPERS
Date of Occurrence: AUG 11, 2017 - DATE OF ETHICS INFORMAL OPINION (COPY INCLUDED)

February 26, 2018

State Of Alabama Ethics Commission

Theresa Davis/ Thomas B. Albritton

Ref. Robert Brown, Fairhope City Council

Statement of Facts:

The Ethics Commission asks the question what "prompted you to make this complaint?"

First was your letter, which I requested through a Freedom of Information Act (FOIA) complaint, where the Ethics commission's advice to Mr.Robert Brown's Informal Opinion Request, was short, direct and clear.

"What's important is that you cannot use your office to create a benefit for yourself or any business with which you're associated or your family. You may bid on the work but you cannot have used or use in the future your position to get it awarded."

Mr. Brown should not have proceeded to secure the contract with Eastern Shore Art Center after receiving your very clear warning. If he were to proceed he would have had to request a formal opinion from the Ethics Commission, which he did not.

This is a classic example of how elected officials use the Ethics Commission as a vehicle to justify their dubious actions. Mr. Brown told the Board of the Fairhope Art Center that he went to great pains to "Get Permission" from the Alabama Ethics Commission to proceed. I doubt they ever read the Informal Opinion.

Baldwin County elected officials feel empowered by the lack of accountability that they have witnessed from the Ethics Commission. They simply use whatever letter the Ethics Commission sends as a green light to proceed ignoring any Public Doctrine, Ethics or conflict of interest.

Mr. Brown is a Fairhope City Councilman and sits on the Board of the Eastern Shore Art Center as a liaison to the City. Mr. Brown is partners with Mr. Cliff Pittman, of Pittman Brown Development Company. Further, Mr. Pittman is a director of the Fairhope Single Tax Corporation. He voted to approve the funds for the Art Center. Clearly Mr. Brown and Mr. Pittman had advanced knowledge of the said contract and failed to heed your advice.

I do not have the letter to the Ethics Commission requesting the Informal Opinion, which I will FOIA request. I also do not know if the contract in question was even bid out. I do know that Mr. Brown assured the Board that he had "permission from the Ethics Commission to proceed."

Your failure to hold Mr. Brown accountable will only encourage other elected officials to use their office for personal gain.

My complaint will be copied to many different individuals, whom I have already personally spoken with or corresponded with, related to the Ethics Commission and the failures previously mentioned.

I anxiously await your response. The public has been indifferent to filing complaints as they have never gone anywhere. The Ripp Report, a non profit consumer corp. uses a public forum to expose political corruption. The Court of Public Opinion has yielded results with little to no help from those elected, whose job it is to enforce the Ethics laws.

https://rippreport.com/2018/02/23/fairhope-jester/

CC:

Mr. Bryan Taylor

General Council for Governor Ivy

Notarized on this 26th day of February 2018.
Andrea L Willis
Andrea L. Willis
My Commission Expires
5-7-18

Mr. Steve Marshall

Alabama Attorney General

Alice Martin

candidate: Alabama Attorney General

Troy King

candidate: Alabama Attorney General

Chris Christie;

candidate: Alabama Attorney General

Lagniappe Mobile

Gabriel Tynes

Assistant managing editor

Francis Paul Ripp

Francis Paul Ripp

The Ripp Report

https://rippreport.com

Notarized on this 26th day of February 2018.

Andrea L Willis

Andrea L. Willis

My Commission Expires: 5-7-18

Subject: RE: Informal Opinion Request

From: Davis, Theresa (Theresa.Davis@ethics.alabama.gov)

To: rb19delta@bellsouth.net;

Cc: Tom.Albritton@ethics.alabama.gov;

Date: Friday, August 11, 2017 1:26 PM

Thanks, Mr. Brown.

What's important is that you cannot use your office to create a benefit for yourself or any business with which you're associated or your family. You may bid on the work but you cannot have used or use in the future your position to get it awarded.

Thomas B. Albritton, Executive Director

Alabama Ethics Commission

100 N. Union St., Suite 104

Montgomery, AL 36104

334.242.2806

tom.albritton@ethics.alabama.gov

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Feb. 27 2018

Dear:

Attorney General of Alabama
Mr Steve Marshall

General council for the Governor Ivy
Mr Brian Taylor

Alice Martin
Candidate Alabama Attorney General

Mr Troy King
Candidate Alabama Attorney General

Mr Chris Christie
Candidate Alabama Attorney General

Lagniappe Mobile
Assistant Managing Editor
Mr Gabriel Tynes

The Alabama Ethics Commission has failed the State of Alabama. In Baldwin County we have seen case after case dismissed by the Ethics commission. In most cases there is irrefutable documents that support the alleged ethics offenses. However the Ethics Commission will dismiss cases with the simple explanation, "there was not probable cause to believe that ------ committed a violation of the Alabama Ethics Act." No explanation is ever given regarding the documents that support the complaint.

Three cases stand out in Baldwin County:

1. Sen Tripp Pittman and the BP money he received, $636,000 for oil boom deployment, from Fairhope. Mr Pittman secured another contract with Perdido Beach Alabama for $99,000. Mr. Pittman was not the contractor of record with Baldwin County Emergency management. He submitted a bid for the BP contract on the same day he was appointed, by Governor Riley, as the "trustee," of BP funds for Baldwin County.
Mr. Pittman owns a Tractor Company, yet with no General Contractor's license, no marine contractor license, no marine insurance and no equipment to support such a contract, he received the contract under the name Pittman Tractor to deploy oil boom and recover the same boom and anchors used. He recovered only the boom and cut free all the anchors and rope and chain, that still remain in Mobile Bay.

An FBI investigation was conducted, a Grand jury convened, and those results sent to Attorney General Luther Strange, where ultimately it was transferred to the white collar crime division of the Attorney General's office. The case was never pursued by the Attorney General and the Ethics Commission washed it's hands in a dirty sink.

2. The Fairhope Airport Scandal: This case involves the President of the Fairhope city council and liaison to the Airport. An Airport board member, who is an attorney, and general partner, of the Fairhope municipal judge.
An oversimplification of the complaint is that while the President of the council was accepting free rides to golf tournaments in the attorney and judge's million dollar jet airplane, he also assumed the position to be on the bid committee that awarded an airplane hanger lease, approximately $800,000 to the board member and the judge. The request for an Advisory opinion was flawed and not truthful and the Ethics Advisory Opinion was based on that information. Three of the 5 questions on the rfp ,bid, were not truthful and were deliberately misleading in an effort to secure the lease location. Documents provided to the Ethics commission were ignored and a rubber stamp letter dismissed any Ethics Charges. This case should be reopened for review, the only reason no charges were filed is the connection that these same people have to Sen Tripp Pittman and the influence that they were able to apply to the Ethics Commission.

3. The enclosed complaint filed, involves all the cast of characters of the first two cases. In this case the Fairhope City Councilman only asked for an Informal Opinion, which he ignored. However he did the same thing as everyone else facing an Ethics complaint. He waved a letter in the air and proclaimed he had "permission" from the Ethics Commission to proceed with accepting a contract.

Corruption in Alabama is destroying our State and Municipal governments and the Ethics Commission is aiding and abetting corrupt elected and appointed officials. The Ethics Commission is the strongest link in a chain of corruption.

I hope your first priority, as an elected official, is to recognize the problem and correct it.

Francis Paul Ripp

https://rippreport.com/